

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:

Mr. Justice Md. Moinul Islam Chowdhury

Civil Revision No. 2129 of 2018

IN THE MATTER OF:

An application under section 115(1) of the Code
of Civil Procedure.

(Against Decree)

And

IN THE MATTER OF:

Md. Abdul Momin Talukder

--- Defendant-Respondent-Petitioner.

-versus-

1. Md. Nazabot Ali Talukder being dead his
legal heirs: 1(Ka)-1(Chha) and others

--- Opposite Parties.

Mr. Humayun Kabir Sikder, Advocate

--- For the Petitioner.

Mr. Md. Zahid Hossain Munshi with

Mr. Mohammad Mohiuddin, Advocates

--- For the Opposite Parties.

Heard on: 02.02.2023, 12.02.2023, 14.02.2023
& 19.02.2023.

Date of Judgment: 13.03.2023.

At the instance of the present defendant-respondent-petitioner, Md. Abdul Momin Talukder, this Rule was issued upon a revisional application filed under section 115(1) of the Code of Civil Procedure calling upon the opposite party Nos. 1(Ka)-1(Chha) to show cause as to why the judgment and decree dated 08.02.2018 (decree signed on 18.02.2018) passed by the learned Additional District Judge, Court No. 1, Sirajgonj in the Other Class Appeal No. 213 of 2013 reversing the judgment and decree dated

29.09.2013 (decree signed on 03.10.2013) passed by the learned Senior Assistant Judge, Sadar, Sirajgonj in the Other Class Suit No. 149 of 2005 should not be *set aside*.

The relevant facts for disposal of this Rule, *inter-alia*, are that the present opposite party No. 1, Md. Nazabot Ali Talukder (now deceased) died leaving behind his legal heirs who have already appeared in this revisional application as being opposite party Nos. 1(Ka)-1(Chha) as the plaintiff filed the Other Class Suit No. 149 of 2005 in the court of the learned Senior Assistant Judge, Sadar, Sirajgonj praying for declaration and cancellation of the Heba-Bill-Ewaj Deed No. 302 dated 13.01.2005. The plaintiff No. 1 had 5 sons, a daughter and a wife. In his old age, he was dependent upon his sons and a daughter. The sons were living separately and the plaintiff No. 1 constructed houses for them and he was the owner of the total land measuring 46 decimals together once. In the year 2005, the present defendant-petitioner wanted to get a loan from the BRAC Bank amounting to Tk. 63,00,000/- (sixty-three lac) from the BRAC Bank by his father's (the present plaintiff-opposite party No. 1 Md. Nazabot Ali Talukder) safe custody. Regarding the said purpose the defendant-petitioner came with some persons along with his mother on 13.01.2005 and obtained some fingerprints of his father (the plaintiff-opposite party No. 1) upon the blank stamp papers. Those fingerprints upon the

stamp papers were subsequently used to create the registered Heba-Bill-Ewaj Deed No. 302 dated 13.01.2005 and the defendant-petitioner wanted to measure the land. After knowing the Heba-Deed the plaintiff-opposite party No. 1 came to the Sub-Registry Office to know about the Heba-Bill-Ewaj Deed on 21.08.2005 and after obtaining a certified copy from the Sub-Registry Office showing that it was made by collusively and created by practising fraud. Therefore, filed the instant suit praying for cancellation of the said Heba-Bill-Ewaj Deed.

The present defendant-petitioner contested the suit by filing a written statement denying the contents of the plaint. The defendant claimed that at the old age of his father out of love and affection, his father declared to create a Heba-Deed in his favour by his father 15/16 years earlier within the knowledge of all others. Eventually, on 13.01.2005 he executed the Heba-Bill-Ewaj Deed in the Sub-Registry Office in front of some witnesses. The defendant has been in possession for more than 12 years without any objection from any neighbours.

After hearing and obtaining evidence adduced and produced by the parties the learned Senior Assistant Judge, Sadar, Sirajgonj passed the judgment and decree on 05.05.2010 dismissing the suit. Being aggrieved the plaintiff-appellant preferred the Other Class Appeal No. 81 of 2010 in the court of the learned District Judge,

Sirajgonj which was heard by the learned Additional District Judge, Court No. 2, Sirajgonj on transfer who by his judgment and decree dated 13.08.2012 passed the impugned judgment allowing the appeal but remanding the suit for rehearing, correction of the plaint and taking additional evidence by the learned trial court in presence of both the parties.

After receiving the remand order the learned trial court heard the matter afresh and came to a conclusion to dismiss the suit again by his judgment and decree dated 29.09.2013. Being aggrieved the plaintiff-appellant again preferred the Other Class Appeal No. 213 of 2013 before the learned District Judge, Sirajgonj which was transferred to the learned Additional District Judge, Court No. 1, Sirajgonj for disposal who after hearing the parties passed the impugned judgment and decree dated 08.02.2018 by allowing the appeal. Being aggrieved the instant revisional application has been filed by the defendant-petitioner under section 115(1) of the Code of Civil Procedure and the Rule was issued thereupon.

Mr. Humayun Kabir Sikder, the learned Advocate appearing on behalf of the present defendant-petitioner submits that after getting the Heba-Bill-Ewaj No. 302 dated 13.01.2005 the defendant-petitioner possessed the suit land by fishing and planting various kind of trees with the full knowledge of the plaintiff-opposite party and till today the present defendant-petitioner is in

the possession of the suit land but the plaintiff-opposite party No. 1 could not have any opportunity to contest the suit because after getting false information he obtained the certified copy from the Sub-Registry Office, therefore, filed the instant suit for cancellation of the said Heba-Deed that the deed was void, fraudulent and not binding upon the plaintiff and the said plaint was amended on 04.11.2012.

The Rule has been opposed by the present plaintiff-opposite parties.

Mr. Md. Zahid Hossain, the learned Advocate, appearing along with the learned Advocate Mr. Mohammad Mohiuddin on behalf of the opposite parties, submits that the plaintiff-opposite party, Md. Nazabot Ali Talukder (now deceased) was the admitted owner of the suit land measuring 13.25 decimals along with other land total measuring 46 decimals which were fraudulently and by deception asked by the defendant-petitioner, namely, Md. Abdul Momin Talukder put his father's thumb impressions upon the 5 blank stamp papers in order to obtain a loan facility from the BRAC Bank but subsequently, he created a Heba-Deed dated 13.01.2005 in his favour by practising fraud which did not create any transfer of land by his father, as such, the learned appellate court below reversed the judgment of the learned trial court

lawfully and upon the basis of the documentary and oral evidence in court, thus, the Rule should be discharged.

Considering the above submissions made by the learned Advocates appearing for the respective parties and also considering the revisional application filed by the defendant-petitioner under the provision of section 115(1) of the Code of Civil Procedure along with the annexures therein, in particular, the impugned judgment and decree and also perusing the essential documents adduced and produced before the learned courts below which are available in the lower courts records, it appears to me that the admitted position between the parties is that the present plaintiff-opposite party, Md. Nazabot Ali Talukder (now deceased) was the original owner of the suit land measuring 13.25 decimals along with the other lands total land measuring 46 decimals. In his old age, he was dependent upon the 5 (five) sons and a daughter but earlier he constructed houses for each son who were living with their families. In the year 2005, one son (of plaintiff-opposite party No. 1, Md. Nazaot Ali Talukder) Md. Abdul Momin Talukder as the defendant-respondent-petitioner obtained his father's thumb impressions upon the 5 blank stamp papers upon claiming to get Tk. 63,00,000/- (sixty-three lac) for the purpose of a loan from the local BRAC Bank. In good faith, the father of the defendant-petitioner put his thumb impressions upon the stamp papers with

the promise and request of his one son who is now the defendant-petitioner. However, the defendant-petitioner used those stamp papers fraudulently and by deception created a Heba-Bill-Ewaj Deed in favour of himself in order to transfer the land of the plaintiff-opposite party No. 1 which is under challenge by the said suit. The present defendant contested the suit by contending, *inter alia*, that the father of the defendant-petitioner Md. Abdul Momin Talukder expressed his desire to create a Heba-Deed in order to transfer the land measuring 13.25 decimals 15/16 years earlier. On 13.01.2005 he executed a Heba-Bill-Ewaj as per his earlier desire, as such, there was no fraud and deception committed upon the present plaintiff-opposite party No. 1.

Upon the above factual and legal aspects of the instant case, this court has to take a decision on whether any lawful Heba-Bill-Ewaj was executed by the plaintiff-opposite party No. 1 in favour of the defendant-petitioner or not.

In order to answer the above matter or question, I have carefully examined the documents available in the lower courts records, in particular, the disputed Heba-Bill-Ewaj Deed dated 13.01.2005 being exhibits- 'I' and 'ক'. In the said deed there are 5 thumb impressions on the original deed which has been adduced by the present defendant-petitioner Md. Abdul Momin Talukder as exhibit- 'I' but the plaintiff-opposite party No. 1 submitted a

certified copy thereof as exhibit- 'ক'. I have perused both the copies of both vital deeds and I am satisfied that there was a deed executed by the said executant.

I have perused both the exhibits as exhibited by the respective parties seem to have not illegal. However, the executant of the said deed Md. Nazabot Ali Talukder filed the Other Class Suit by himself challenging the legality and validity of the purpose of the said deed if an executant of a deed subsequently challenged the deed that he never had any consent to execute a Heba-Bill-Ewaj Deed in favour of his eldest son Md. Abdul Momin Talukder then a doubt has been created as to the consent and free will. If there is no consent or if the executant raises a question as to the validity of a deed in order to transfer any property then there must be an inference that the deed was not executed upon his (executant's) free will, as such, the deed cannot be validly transferred in favour of any parties.

In the instant case, the executant of the instant deed, Md. Nazabot Ali Talukder (now deceased) raised the question of the validity of the deed which has been claimed to have been executed by himself by practising fraud cannot have any legal validity in the eye of the law.

From the above factual aspects of the plaint, the executant put his thumb impressions upon the exhibits- 'I' and 'ক' by

claiming for the purpose of obtaining a loan from the local BRAC Bank but the executant was deceived by creating deception for transfer of the property.

Now, I am going to examine the judgment and decree passed by the learned courts below:

The learned trial court dismissed the suit wrongly on the basis of the following findings:

...“বাদীপক্ষ দাবী ক-র-ছেন নালিশা দলি-ল বাদী টিপ দি-য়ছিল ত-ব ব্র্যাক এনজিও থে-ক টাকা তোলার কথা ব-ল বিবাদী স্বাক্ষর নি-য়ছিল কিন্তু ব্র্যাক এনজিও থে-ক টাকা তোলার কথা ব-ল বিবাদী দলি-ল স্বাক্ষর নি-য়ছি-লন এমন বিষয় বাদীপক্ষ প্রমাণ কর-ত সক্ষম হননি। যে-হতু নালিশী দলিল বিবাদী কর্তৃক প্রতারণামূলক বা ভুল বুঝি-য় বাদীর কাছ থে-ক ক-র নেওয়ার বিষয় বাদীপক্ষ প্রমাণ কর-ত সক্ষম হননি এবং নালিশী দলিলটি রেজি-স্ট্রেশন আই-নর ৬০ ধারা ম-ত যথাযথ কর্তৃপক্ষ কর্তৃক রেজিস্ট্রি কার্য সম্পন্ন হওয়ার পর দাতা সংশ্লিষ্ট সাব-রেজিস্ট্রা-রর সম্মু-খ হাজির হ-য় হলফনামাও সম্পাদন ক-র-ছেন সেহেতু উক্ত দলিলটি বেআইনী, জাল, যোগসাজসী, অকার্যকর ও ফলবিহীন দাবীর কোন সু-যোগ নাই। সার্বিক বি-বচনায় ৪ নং বিচার্য বিষ-য় বাদীপ-ক্ষর প্রতিকূ-ল সিদ্ধান্ত গৃহিত হ-লা।”...

However, the learned appellate court below came to a lawful conclusion to reverse the judgment of the learned trial court on the basis of the following findings:

...“পর্য্য-লাচনায় এবং circumstances বি-বচনায় এই আদালত ম-ন ক-রন প্রকৃত পক্ষেই বাদী তাহার পুত্র বিবাদী বরাবর নালিশী দলিলটি স্বেচ্ছায় ও স্বজ্ঞানে সম্পাদন ও রেজিস্ট্রি করিয়া দেন নাই বরং বিবাদী তাহার বৃদ্ধ পিতা-ক ব্র্যাক অফি-স ঋণ উঠা-নার কথা বলিয়া স্ট্যাম্পে সই নিয়া বাদীর উপর প্রতারণা পূর্বক (fraud practice) করতঃ বাদীর অজ্ঞাতে তর্কিত দলিলটি সম্পাদন ও রেজিস্ট্রি করিয়া লইয়া-ছেন নথি ও সাম্প্র্য পর্য্য-লাচনায়

দেখা যায় নালিশী জমির দখল বিবাদী বরাবর হস্তান্তর হয় নাই। কা-জই তর্কিত দলিল কার্যকর (Acted upon) হইয়া-ছ বলা যাইতে-ছ।

সুতরাং নথি ও সাক্ষ্য পর্যা-লাচনায় উপর্যুক্ত আলোচনার আলোকে এই আদালত ম-ন ক-রন নালিশী ৩০২/০৫ নং হেবাবিল এওয়াজ দলিলটি বে-আইনী, তথ্যকী, যোগসাজসী, অকার্যকর দলিল হইতেছে। কাজেই উক্ত দলিলটি বে-আইনী, জাল, যোগসাজসী, ফলবিহীন, তথ্যকী, অকার্যকর ও বাতিল মর্মে বাদী ডিক্রি পাইতে হকদার হইতেছেন। উপরোক্ত সামগ্রীক আ-লাচনার আলোকে দেখা যায় যে, বিজ্ঞ বিচারিক আদালত আপীল সংক্রান্ত মূল মোকদ্দমার আলোচনা পূর্বক মূল মোকদ্দমা ডিসমিস করতঃ যে সিদ্ধান্ত প্রদান করিয়া-ছেন তা সঠিক নয় বলিয়া সিদ্ধান্ত গ্রহণ করা হইল।”...

In view of the above 2 conflicting decisions of the learned courts below, I am of the view that the learned trial court committed an error of law by dismissing the suit filed by the executant of the Heba-Bill-Ewaj Deed in question, whereas, the learned appellate court below could realize that question, therefore, came to a lawful conclusion to allow the appeal on the ground that the deed was created by practicing fraud which cannot stand in the eye of law. In the instant case, there was no transfer of property in favour of the present defendant-petitioner by creating the said Heba-Bill-Ewaj Deed by the plaintiff which was obtained by practising fraud and by deception.

In view of the above, I am not inclined to interfere into the impugned judgment and decree passed by the learned appellate court below, therefore, this Rule does not require any further consideration.

Accordingly, I do not find merit in this Rule.

In the result, the Rule is hereby discharged.

The impugned judgment and decree dated 08.02.2018 passed by the learned Additional District Judge, Court No. 1, Sirajgonj in the Other Class Appeal No. 213 of 2013 allowing the appeal and thereby reversing the judgment and decree dated 29.09.2013 passed by the learned Senior Assistant Judge, Sadar, Sirajgonj in the Other Class Suit No. 149 of 2005 dismissing the suit is hereby *upheld*.

The interim order of the stay passed by this court at the time of issuance of this Rule and subsequently the same was extended is hereby recalled and vacated.

The pertinent department of this Court is hereby directed to send down the lower courts' records along with a copy of this judgment and order to the lower courts concerned as early as possible.